



CHAPTER 67.

An Act to amend the provisions of the Supreme Court of Judicature (Consolidation) Act, 1925, relating to the number of judges of the Court of Appeal, the performance by such judges of the functions of judges of the High Court, and the filling of vacancies among judges of the Chancery Division. A.D. 1938.
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[29th July 1938.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. The number of ordinary judges of the Court of Appeal shall be increased to eight; and accordingly subsection (1) of section six of the Supreme Court of Judicature (Consolidation) Act, 1925, (in this Act referred to as "the principal Act") shall have effect as if for the word "five" there were therein substituted the word "eight."

Amendment
of 15 & 16
Geo. 5. c. 49,
s. 6.

2.—(1) The duties of an ordinary judge of the Court of Appeal appointed after the commencement of this Act shall include the duties of sitting and acting as a judge of the High Court when requested by the Lord Chancellor so to do, and of performing, when so requested, any other acts which a judge of the Court

Amendment
of 15 & 16
Geo. 5. c. 49,
s. 3.

A.D. 1938. of Appeal is empowered to perform by section three of
 — the principal Act.

(2) Paragraph (a) of the proviso to subsection (1) of the said section three (which makes provision as to the concurrence of the Lord Chief Justice or of the President of the Probate Division where persons who have held judicial offices are requested to act as judges of the King's Bench Division or Probate Division respectively) shall apply in relation to any such request as aforesaid to any judge of the Court of Appeal.

(3) Paragraph (b) of the said proviso (which makes provision as to the consent of persons who have ceased to hold judicial offices) shall apply to any person holding office as a judge of the Court of Appeal except an ordinary judge of that Court appointed after the commencement of this Act.

Amendment of 15 & 16 Geo. 5. c. 49, ss. 4 and 11. **3.**—(1) Paragraph (i) of subsection (1) of section four of the principal Act shall have effect as if after the word "and" there were therein inserted the words "(subject to the provisions of this Act)".

(2) Subsection (1) of section eleven of the principal Act (which relates to the filling of vacancies among judges of the Supreme Court) shall have effect as if after paragraph (a) of the proviso to that subsection there were therein inserted the following paragraph:—

"(aa) if after the occurrence at any time of a vacancy among the puisne judges attached to the Chancery Division the number of those judges amounts to five, the vacancy shall not be filled unless and until the Lord Chancellor, with the concurrence of the Treasury, advises His Majesty that the state of business in that Division requires that the vacancy should be filled; and"

Expenses. **4.** Any increase in the sums payable under section fifteen of the principal Act in respect of the salaries and pensions payable to the additional judges of the Court of Appeal appointed by virtue of this Act shall be charged on and paid out of the Consolidated Fund of the United Kingdom or the growing produce thereof, and any increase in the sums payable under section one hundred and twenty-one of the principal Act in respect

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of the salaries payable to the clerks attached to such judges shall be defrayed out of moneys provided by Parliament. A.D. 1938. —

5. This Act may be cited as the Supreme Court of Short title.
Judicature (Amendment) Act, 1938.

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FOR

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